

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 8, HEALTH AND SAFETY, CHAPTER 8.44, SOLID WASTE, OF THE CHEYENNE CITY CODE, PERTAINING TO THE GENERAL PROVISIONS OF THE SOLID WASTE CODE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections of Title 8, Health and Safety, Chapter 8.44, Solid Waste, of the Cheyenne City Code pertaining to the general provisions and authority of the solid waste division of the City of Cheyenne are hereby amended as set out in this ordinance. Sections and provisions currently existing within Chapter 8.44 not amended by this ordinance remain unchanged.

Section 2. That Chapter 8.44.010 –Purpose – Authority – General Provisions, Part (D.), be amended in its entirety to read:

D. It is assumed that each residence ~~and business~~ OR BUILDING in the city produces solid waste. Therefore, each residence ~~and business~~ OR BUILDING must subscribe to and pay for city solid waste services. FOR BUILDINGS IN WHICH ONE OR MORE BUSINESSES OPERATE, CITY SOLID WASTE SERVICES WILL BE ASSESSED AGAINST THE OWNER(S) ON A PER DUMPSTER AND PER PICKUP BASIS. EACH OF THESE BUILDINGS WILL BE ASSESSED A CHARGE BASED ON THE NUMBER OF DUMPSTERS AND THE NUMBER OF PICKUPS UTILIZED, REGARDLESS OF HOW MANY BUSINESSES ARE OPERATING WITHIN THE BUILDING.

An owner(s) may terminate solid waste services if the residence or ~~business~~ BUILDING is vacant, unused, or there have been changes made which affect the use or occupancy of the property, by filing a written request with the solid waste division to terminate, suspend, or change services. An affidavit form is available at the transfer station. This form when signed and notarized, will meet this requirement. Adjustments will be made upon receipt of a completed form by the solid waste division. Owner(s) must also notify the solid waste division immediately of any changes to the property after the affidavit is signed. If notification is not made, the solid waste division is authorized, at its discretion, to charge for the entire period back to the change date specified in the original affidavit. Customers bear the burden to ensure correct billing for services provided. Warranted adjustments for past billing errors will be limited to no more than sixty (60) days from customer’s notification of the error to the solid waste division.

Section 3. That this ordinance shall be in full force and effect as of January 1, 2014, upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

Publish: Wyoming Tribune-Eagle